

TENTATIVE RULINGS for LAW and MOTION

July 2, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Two	(530) 406-6787
Telephone number for the clerk in Department Thirteen	(530) 406-6777
Telephone number for the clerk in Department Fourteen	(530) 406-6800

TENTATIVE RULING

Case: **Arunyakasem v. Holcomb**
 Case No. CV2026-1658

Hearing Date: **July 2, 2026** **Department Two** **3:00 p.m.**

Defendants Curtis Holcomb and Tina Cline’s demurrer to plaintiff Vichai Arunyakasem’s complaint for unlawful detainer based on defective notice is **OVERRULED**. (Code Civ. Proc., §§ 430.10, subd. (e), 1161; Civ. Code § 1946.2.) Although defendants argue that plaintiff’s notice did not give defendants the opportunity to cure the breach under Code of Civil Procedure section 1161(3), the notice attached to the complaint is based on the failure to pay rent under subdivision (2) of section 1161. (Complaint, ¶¶ 6-7, Exhibit A.) Further, defendants fail to establish that, despite the allegations in the complaint, Civil Code section 1946.2 applies to their tenancy. (Complaint, ¶ 4.)

Defendants’ demurrer to plaintiff’s complaint for unlawful detainer based on failure to state facts sufficient to constitute a cause of action is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendants have not shown that plaintiff’s complaint does not state a cause of action for unlawful detainer. (See, e.g., *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; see also Complaint, ¶ 6, Exhibit A.)

Defendants’ demurrer to plaintiff’s complaint for unlawful detainer based on uncertainty is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (f).) The complaint is not unclear such that defendants cannot reasonably respond. (See *Khoury v. Maly’s of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

Defendants Curtis Holcomb and Tina Cline shall file their answers no later than **July 7, 2026** (5 days after the hearing). (Cal. Rules of Court, rule 3.1320(g); 1.10(a).)

The notice of demurrer does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for demurring party, or the demurring party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Augustus Aetius v. FCA US, LLC**
 Case No. CV2024-2843

Hearing Date: **July 2, 2026** **Department Thirteen** **9:00 a.m.**

Defendant FCA US, LLC's motion to compel plaintiff's responses to request for production of documents and request for sanctions is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., § 2031.300.) Based on defendant's proof of service, it failed to serve plaintiff Augustus Aetius at the correct email address. (See Cal. Rules of Court, rule 2.251 (c)(4); see also Code Civ. Proc., § 1013b, subd. (b); Plaintiff's consent to electronic service [filed June 11, 2025], ¶ 2.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **In re McLemore Virgil**
 Case No. PR2025-0166

Hearing Date: **July 2, 2026** **Department Fourteen** **9:00 a.m.**

Respondent Sandra R. Gordon's motion to compel answers to form and special interrogatories and requests for production; for an order that the truth of all matters specified in the requests for admissions be deemed admitted, for sanctions, including reasonable attorney's fees is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., §§ 2030.290 subd. (b), 2031.300, subd. (b), 2033.280, subd. (b).) Respondent did not file a proof of service at least five court days before the hearing, showing that petitioner Marcel Myres was properly served with the moving papers. (Cal. Rules of Court, rule 3.1300(c); see also Code Civ. Proc., § 1005, subd. (b).)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Jane Doe v. City of West Sacramento**
Case No. CV2026-1525

Hearing Date: **July 2, 2026** **Department Thirteen** **9:00 a.m.**

Plaintiff's motion to proceed under pseudonym:

Plaintiff Jane Doe's motion to proceed under pseudonym is **DENIED WITHOUT PREJUDICE**. (Cal. Rules of Court, rule 2.550(d); *Department of Fair Employment & Housing v. Superior Court*, (2022) 82 Cal.App.5th 105, 110; *Roe v. Smith*, (2025) 116 Cal.App.5th 227, 239.) A party's motion to proceed under pseudonym must be supported by evidence showing harm if disclosure were to occur as conclusory allegations of harm are insufficient to support the finding of an overriding interest. (*Smith, supra*, at 243.) The Court finds that plaintiff did not provide any supporting documentation showing harm, as required.

Plaintiff shall file an amended complaint that uses her full legal name no later than **July 16, 2026**.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Plaintiff's motion to file documents under seal:

Plaintiff Jane Doe's motion to file documents under seal is **DENIED WITHOUT PREJUDICE**. (Cal. Rules of Court, rule 2.551(b)(1).) A party requesting to file documents under seal must file a motion that is "accompanied by a memorandum and declaration containing facts sufficient to justify the sealing." (*Ibid.*) The Court finds that plaintiff did not file an accompanying memorandum, as required.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Ramos Oil Co., Inc. v. Elite Moving & Storage, Inc. et al.**
Case No. CV2023-2276

Hearing Date: **July 2, 2026** **Department Fourteen** **9:00 a.m.**

Plaintiff Ramos Oil Co., Inc.'s motion for attorneys' fees and costs is **GRANTED IN PART** in the amount of **\$139,928.19**. (Civ. Code, §§ 1717, 1033.5.) The Court finds that:

- Plaintiff was the prevailing party and is entitled to recover reasonable attorneys' fees pursuant to the agreement between plaintiff and defendants Elite Moving & Storage, Inc. and Yuval Bitton (collectively, "defendants"). (Civ. Code, § 1717; Bilheimer Decl., ¶¶ 2-3, Exhs. A-C.)
- Based upon (1) the nature of the litigation; (2) its difficulty; (3) the amount involved; (4) the skill required in its handling; (5) the skill employed; (6) the attention given; and, (7) the success in the case, the Court finds the legal fees requested by John Bilheimer, Esq. are reasonable. (Civ. Code, §§ 1717, 1033.5, subd. (c)(5)(B); *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1096; Bilheimer Decl., ¶¶ 4-9, Exh. D.) However, the Court declines to award legal fees as requested for the time legal assistants Melissa Hochwald ("Hochwald") and Jerica Moore ("Moore") spent working on this matter. (Bilheimer Decl., ¶¶ 4-9, Exh. D.) Neither Hochwald nor Moore submitted separate declarations regarding the hours they spent working on this matter. The statements by John Bilheimer regarding the time Hochwald and Moore spent working on this matter are hearsay. (Evid. Code, § 1200; Bilheimer Decl., ¶ 5-9, Exh. D.) Accordingly, the Court awards legal fees in the amount of \$138,310.00.
- The Court declines to award costs as requested for Sheila Lowe – Expert witness (\$5,700.00). (Bilheimer Decl., ¶ 5, 8, Exh. D.) Fees of experts not ordered by the court are not allowable as costs. (Code Civ. Proc., § 1033.5, subd. (b)(1).)
- The Court declines to award costs as requested for Zenith Investigations (\$17,862.67) and LexisNexis Accurint (\$675.01). (Bilheimer Decl., ¶ 5, 8, Exh. D.) Investigation expenses in preparing a case for trial are not allowable as costs. (Code Civ. Proc., § 1033.5, subd. (b)(1).)
- The Court finds the costs as requested for LA County Recorder (\$251.00), First Legal Records (\$387.30), and First Legal Network (\$979.89) were reasonably necessary to the conduct of the litigation and reasonable in amount. (Code Civ. Proc., § 1033.5, subd. (c).)

Accordingly, the Court awards plaintiff attorneys' fees and costs in the amount of **\$139,928.19**.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **State Farm Mutual Automobile Insurance Company v. Hernandez et al.**

Case No. CV2026-0787

Hearing Date: **July 2, 2026** **Department Thirteen** **9:00 a.m.**

Defendant Julia Maria Mendoza's demurrer to plaintiff State Farm Mutual Automobile Insurance Company's complaint is **DROPPED FROM CALENDAR AS MOOT.** (Code Civ. Proc., § 430.10, subds. (e), (f).) Plaintiff's complaint was dismissed with prejudice on June 1, 2026. (Request for dismissal [filed 6/1/26].)

TENTATIVE RULING

Case: **State of California, by and through the Department of Water
Resources v. Wooden Decoy, LLC et al.
Case No. CV-2022-1775**

Hearing Date: **July 2, 2026** **Department Fourteen** **9:00 a.m.**

On the Court's own motion, defendant Glide In Ranch's motion for summary judgment or judgment on the pleadings is **CONTINUED** to **July 30, 2026**, at 9:00 a.m. in Department Fourteen.